



WHO CAN CONDEMN THE WOMAN IN THIS BOOK?

THE *MADAME BOVARY* TRIAL (1857)

IN CONTEXT

FOCUS

Censorship

BEFORE

1571 In France, the Edict of Gaillon is issued to prevent undesirable works from being published.

1803 Napoleon decrees that every book must be submitted to the Commission of Revision.

1852 Napoleon III introduces strict press censorship.

AFTER

1857 French poet Charles Baudelaire goes on trial for obscenity in his collection *Les Fleurs du Mal*; the court bans six poems.

1921 *Ulysses*, by Irish novelist James Joyce, is banned in the US after it is judged obscene.

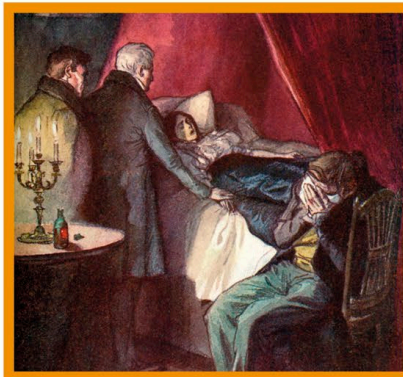
1960 In the UK, the publisher of *Lady Chatterley's Lover* by D. H. Lawrence is tried under a new obscenity law and acquitted.

France in the 1850s was under the authoritarian rule of Napoleon III, who had seized power in 1851. He was the nephew of Napoleon Bonaparte and, like his uncle before him, he restricted press freedom and exerted censorship over literary works. This was in an effort to curb the individualism that had sprung up during the French Revolution (1789–1799) and was thought harmful to the unity of the French Republic. In 1857, when Gustave Flaubert published his first novel—*Madame Bovary*—about a bored housewife who embarks on a series of affairs, he was indicted on charges of “outraging public and religious morals and good manners.”

The literary realism of the novel, in which Emma Bovary’s desires, extravagance, and adulterous actions receive no moral censure from the narrator, led to concerns that male readers might be aroused and female readers led astray. However, the way in which Flaubert implied impropriety without overtly describing it made it difficult for

the censors to build a compelling case. As a result, the trial only lasted a day, and Flaubert was acquitted.

Obscenity laws across the globe have since been used to restrict the public’s access to books that are deemed morally reprehensible, such as *Ulysses* by James Joyce, which was banned in both the UK and the US. Ironically, the main impact of such trials is that the works they intended to suppress went on to become bestsellers. ■



Emma Bovary is shown here on her deathbed, having committed suicide by swallowing poison after her former lovers refuse to help her pay her debts.

See also: The trial of Galileo Galilei 93 ■ The Statute of Anne 106–107
■ The WIPO Copyright Treaty 286–287 ■ The Open Internet Order 310–313